

HSAM 3008.401-71(d)
Sole-Sources Justification (SSJ) pursuant to Revolutionary Federal Acquisition Regulation Overhaul (RFO) 8.401(b)

[REDACTED]

SSJ No.: [REDACTED]

This acquisition is conducted in accordance with the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, 40 U.S.C. 501, Services for Executive Agencies, and in accordance with Federal Acquisition Regulation (FAR) 8.401, FAR Class Deviation 25-20 for FAR Part 8¹, and General Services Acquisition Manual (GSAM) 538.7104-4, “Items peculiar to one manufacturer.”²

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Information Technology Acquisition Center (ITAC) proposes to award an order for the brand name Consolidated Lead Evaluation and Reporting (CLEAR) digital data system from West Publishing Corporation.

2. Nature and/or description of the action being approved.

DHS OPO is specifying a brand name item peculiar to one manufacturer, CLEAR. DHS OPO intends to procure this product through General Services Administration (GSA) Federal Supply Schedule (FSS) contract number GS-02F-026DA with West Publishing Corporation. West Publishing Corporation is the OEM and sole distributor of CLEAR.

3. Description of Supplies/Services.

CLEAR is a digital database that provides billions of data points and leverages cutting-edge public records technology to bring all key content together in a customizable dashboard. CLEAR provides hard-to-find information and allows the user to quickly identify potential concerns associated with people and businesses to determine if further analysis is needed. CLEAR is vital to the mission-essential, time sensitive investigative work of several DHS Components as it makes it easier to locate people, assets, businesses, affiliations, and other critical facts. A subscription provides integrated access to public records and commercial data that is not available in similar scope from any other provider.

CLEAR provides valuable information about potential threats, links criminal enterprises to businesses, and offers unique, critical, and time-sensitive data to the agency personnel.

DHS has a twofold mission: First, to safeguard the American people by getting timely intelligence and information it needs to keep the homeland safe and secure. Second, to prevent Terrorism and Enhance Security, Secure and Manage US Borders, Enforce and Administer US Immigration Laws, and Strengthen National Preparedness and Resilience.

¹ FAR Class Deviation 25-20, Revision 1 for FAR Part 8 was issued as part of the evolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025. Any subsequent citations to FAR Part 8 in this document will be cited as “RFO FAR” for brevity and are referring specifically to FAR Class Deviation 25-20 for FAR Part 8.

² GSA Class Deviation RFO-2025-FSS-GSAR-538: General Services Administration Acquisition Regulation (GSA) Class Deviation, Federal Supply Schedule (FSS) Program Ordering Procedures

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CLEAR provides access to the following exclusive features and research materials instrumental to the mission of DHS Components:

- Provider Data for Healthcare Fraud investigation
- Passport Checker
- Photo Images on Criminal Records
- Cell Phone Data—
- Utility Data —
- Credit Reporting Bureaus
- Real-Time Vehicle Registration Data
- Global Business Data
- License Plate Recognition (LPR) Data
- Real Time Incarceration Arrest Records

The Independent Government Cost Estimate (IGCE) for this effort is [REDACTED]. The period of performance is for one (1) 12-month Base Period of Performance and two (2) 12-month Option Periods.

Periods	Price
Base Period (4/1/2026 – 3/31/2027)	[REDACTED]
Option Period 1 (4/1/2027 – 3/31/2028)	[REDACTED]
Option Period 2 (4/1/2028 – 3/31/2029)	[REDACTED]
FFP Total	[REDACTED]

4. Authority and supporting rationale.

In accordance with RFO FAR 8.401, and GSAM 538.7104-4(a), Items peculiar to one manufacturer. CLEAR license features are essential to DHS' requirement and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the need.

DHS has a need for the different data elements offered by CLEAR within the specific interface search capabilities. Other Law Enforcement databases such as LexisNexis and TransUnion do not offer these specific interface search capabilities.

If DHS does not procure this data, DHS would not have access to Key Investigation Content including CLEAR Exclusives data such as: Provider Data for Healthcare Fraud Investigation, Passport Checker, Photo Images on Criminal Records, Cell Phone Data, Utility Data, Credit Reporting Bureaus, Real-Time Vehicle Registration Data, Global Business Data, License Plate Recognition Data, CLEAR Adverse Media, CLEAR ID Confirm International, CLEAR Risk Inform, CLEAR ID Confirm, Asset Insights, World Check Risk Intelligence, Real Time Incarceration and Arrest Records, Real Time Incarceration and Arrest Alerts. Also, DHS would not have access to CLEAR Advanced Features and Capabilities such as: Criminal Analytics, System to System with New Developer Portal, Batch Services, Alerts, Web and Social Media, Associate Analytics, Company Family Tree, Graphical Display, News, Map Analytics, Quick

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Analysis Flags, Address Map, Customizable Dashboard, Vital Statistics, Linked Searching, Entity Resolution, Relevance Scores, Data Source Transparency, User Preferences, Customized Reporting, Workspace CLEAR Mobile Access, Compatibility with Analytical Programs, and Google Maps Compatibility.

Without this data, DHS would not be able to identify targets associated with criminal enterprise, terrorism, and immigration fraud as rapidly. Not having this information would negatively impact the mission of Law Enforcement Officers, Intelligence Analysts, Fraud Analysts and others who work to disrupt and dismantle national security threats.

The current order, 70RTAC23FR0000035 was awarded as a sole source procurement against General Services Administration contract GS-02F-026DA and expires on March 31, 2026. The potential for a gap in services is high and would negatively impact DHS mission as it would be unable to obtain key investigation content as it relates to identifying targets associated with criminal enterprise, terrorism, and immigration fraud.

5. Determination by the ordering activity contracting officer that the anticipated order represents the best value consistent with RFO FAR 8.401 and GSAM 538.7102-2(b)(4).

The contracting officer has determined that issuing the proposed order to West Publishing Corporation for the procurement of services described herein represents the best value to the Government and will result in the lowest overall cost, considering price and administrative costs, to meet the Government's needs. Prices have been previously negotiated by the GSA and were determined to be fair and reasonable at the time of award.

The Contracting Officer will verify the price for this effort is consistent with the pricing in GSA schedule Contract along with seeking a price reduction.

6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

Market research was conducted in accordance with RFO FAR Part 10. CLEAR is the only data source that can meet all of DHS's investigative requirements. DHS has monitored the market for data sources and surveyed the capabilities of the competitor products of CLEAR but found that none offer the breadth of data provided by CLEAR. Specifically, CLEAR is the only product which provides license plate recognition data integrated into a commercial database suite. While there are products that provide license plate recognition data separately, they do not have the breadth and volume of data provided by CLEAR. Additionally, competitor products do not provide as broad of geographic coverage of license plate data. As DHS has an area of responsibility covering the entire nation, geographic gaps in provided data materially impacts DHS' ability to investigate crimes in many areas.

CLEAR fully integrates all provided data into a cohesive user interface that brings all available data to analysts. Utilizing a database other than CLEAR would leave gaps in available data that would need to be filled by using a patchwork of various specialized data sources. The nature of DHS' investigative and protective work often involves real-time operations requiring immediate data access and analysis to fuel decision making. In the absence of CLEAR, analysts and agents

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would need to patch data together from multiple sources which would have the potential to dramatically lengthen the time needed for analysis, putting many of DHS real-time operations at risk. When evaluating protective threats and disrupting criminal operations, time can be of the essence as decisions that are made too slow can cause a threat or criminal operation to fall through the net before data can be analyzed and decisions can be made in time. CLEAR provides DHS the only known product that can integrate the required data sources into a singular user interface.

CLEAR is the only investigation database that integrates license plate recognition data, real time incarceration arrest records, and Vigilant LEARN into one single search interface commercial data/records database suite with geolocation analytics. West Publishing is the only vendor that can provide access to the CLEAR database under a single platform. There are no other sources with an equivalent service. This subscription will provide DHS access to extensive and current data sources, functionality, and exclusive offerings that comprise the most comprehensive investigative database platform available.

It was determined that West Publishing Corporation is the sole provider and retailer of the CLEAR product. No other on-line investigative research tool provides a combination of data, features, and capabilities, found on CLEAR.

7. Any other facts supporting the sole-sources justification.

There are no additional facts to state.

8. A statement of action, if any, the agency may take to remove or overcome any barriers that led to restricted consideration (i.e., sole sources) before any subsequent acquisition of the supplies or services is made.

The DHS Research Library and Information Services (RLIS) program office will continue to perform ongoing market research such as reviewing Government and Commercial databases, reviewing professional journals, and attending conferences to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

9. DHS intends to post this sole source requirement at the Government-wide Point of Entry (GPE) pursuant to RFO FAR 8.401(b), GSAM 538.7104-3(b)(3)(ii)(A).

10. Technical/Requirements Personnel Certification.

[REDACTED]

Technical Representative

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11. Contracting Officer Certification

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Contracting Officer

12. Approval

In accordance with HSAM 3008.401-71, this sole source justification is approved by the advocate for competition.

[REDACTED]

Procuring Activity Advocate for Competition or Designee